

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
DEANDRE SIMMONS,

Index No.

Purchased 6-3-20

Plaintiff

Plaintiff designates Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort aroseTHE CITY OF NEW YORK and
POLICE OFFICER EDOUARD FITZ
(shield # 4802),

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
March 4, 2020

THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY-----X
DEANDRE SIMMONS,

Plaintiff,

Index No.

Verified Complaint

- against -

THE CITY OF NEW YORK and
POLICE OFFICER EDOUARD FITZ (shield # 4802)Defendants.
-----X

Plaintiff DEANDRE SIMMONS, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff DEANDRE SIMMONS was a resident of Bronx County, State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendant POLICE OFFICER EDOUARD FITZ (shield # 4802)("P.O. FITZ"), was and is a police officer employed by Defendants.

BACKGROUND

5. On April 1, 2019, at approximately 4:00 p.m., in the vicinity of East 165th Street and Tinton Avenue in Bronx County, without just cause or provocation, Defendants, including P.O. FITZ, approached Plaintiff, violently handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Weapon in the 2nd Degree.
6. Next, Plaintiff was taken to a police precinct in Bronx County.
7. Plaintiff was forced to remain in a precinct cell until Plaintiff was transported to Bronx Central Booking.
8. On April 2, 2019, Plaintiff was released from Central Booking without appearing before a Judge and without being prosecuted for any crime or offense.

PROCEDURAL POSTURE

9. On April 29, 2019, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
10. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
11. This action has been commenced within one year and ninety days after the cause of action accrued.
12. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

13. Paragraphs 1-12 are incorporated by reference as fully set forth herein.
14. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 5-8, and Plaintiff did not consent to that arrest or confinement.
15. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right. Defendant's lacked probable cause to arrest Plaintiff.
16. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: ASSAULT

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.
18. P.O. FITZ, acting as the agent, servant and employee of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by approaching Plaintiff and violently handcuffing Plaintiff.
19. As a result of being assaulted by P.O. FITZ, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: BATTERY

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.
21. When P.O. FITZ violently handcuffed Plaintiff, P.O. FITZ subjected Plaintiff to a harmful or offensive bodily contact. P.O. FITZ intended to make that contact without Plaintiff's consent.

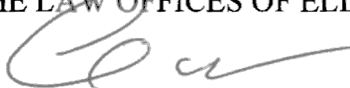
22. As a result of being battered by P.O. FITZ, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
March 4, 2020

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, NY 10451

212-939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
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Plaintiff

-against-

CITY OF NEW YORK and POLICE OFFICER
EDOUARD FITZ (shield # 4802),Defendants

-----X

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

DEANDRE SIMMONS, being duly sworn deposes and says that the
deponent is the Plaintiff in the within action; that deponent has read the foregoing
and know the contents thereof; that the same are true to deponents own knowledge,
except as to the matters therein stated to be alleged on information and belief, and
that as to those matters deponent believes them to be true.

Dated: Bronx, NY

3-4-20Deandre Simmons
DEANDRE SIMMONSSworn to before me on this
4th day of March, 2020
Notary Public

ELLIOT S. KAY
Notary Public, State of New York
No. 02KA6234193
Qualified in Westchester County
Commission Expires January 18, 2023